

26STLC00747 26STLC00747

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-27

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Case Number: 26STLC00747 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Anayeli Osorio's Petition

for Approval of Compromise of Disputed Claim on behalf of Minor Plaintiff Priscilla

Lopez is GRANTED.

ANALYSIS:

Court

approval is required for all settlements

of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) “[W]ithout trial court approval

of the proposed compromise of the ward's claim, the settlement cannot be valid.

[Citation.] [¶] Nor is the settlement

binding [on the minor] until it is endorsed by the trial court.” (Pearson

v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like

Claimant, “shall appear either by a guardian or conservator of the estate or by

a guardian ad litem appointed by the court in which the action or proceeding is

pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd.

(a)(1).) Alternatively, the petitioner may file a declaration demonstrating

that they have a right to compromise the minor’s claim under Cal. Probate Code

section 3500. The Court excuses the

appearance of the petitioner and claimant at the hearing. (Cal. R. Ct., rule 7.952(a).)

Minor Plaintiff Priscilla Lopez

(“Minor”), by and through her Guardian ad Litem Anayeli Osorio (“Petitioner”),

filed this action against Defendant Kathleen Galan for injuries arising out of

a motor vehicle incident that occurred on March 28, 2025, in Sylmar,

California. The complaint alleges a cause of action for motor vehicle

negligence. Petitioner was appointed Guardian ad Litem for the Minor in this

action.

Petitioner filed a Petition for

Approval of Compromise of Claim or Action or Disposition of Proceeds of

Judgment for Minor. The petition seeks approval of a settlement in the gross

amount of \$15,000.00, representing the total settlement payable by Defendant.

The petition includes medical

records and a physician’s report reflecting that the Minor sustained injuries

to her spine, right thigh, shoulders and cervix, and that she has since

recovered without permanent impairment. The Court finds the settlement amount

reasonable in light of the nature of the incident, the injuries sustained, and the Minor's recovery.

Attorney's fees in the amount of

\$3,750.00 (25% of the gross settlement) and medical expenses totaling \$4000.00

are reasonable and supported by the declarations and documentation submitted.

After payment of approved fees and expenses, the net balance of \$6,550.00

remains for the benefit of the Minor.

The Court finds that the petition

satisfies the requirements for expedited approval under California Rules of

Court, rule 7.950.5. The settlement amount does not exceed \$50,000; no portion

of the proceeds is to be placed in a trust; there are no unresolved lien

disputes; all appearing defendants participated in the settlement; and

Petitioner is represented by counsel independent of the defendant and insurer.

Petitioner also filed a proposed Order

Approving Compromise of Disputed Claim or Pending Action or Disposition of

Proceeds of Judgment for Minor or Person with a Disability (Judicial Council

Form MC-351), and a proposed Order to Deposit Money into Blocked Account

(Judicial Council Form MC-355). The expedited petition is granted with proposed

orders to be signed this date.

Conclusion

Petitioner

Laura Rosales's Petition for Expedited Approval of Compromise of Disputed Claim

on behalf of Minor Plaintiff Carlos A. Morales is GRANTED.

Court

clerk to give notice.